

DEPARTMENT OF THE NAVY

NAVSUP WSS

700 ROBBINS AVENUE PHILADELPHIA PA 19111-5098

Justification for Other Than Full & Open Competition

1. Contracting Activity

Contracting Activity		NAVSUP WSS - Philadelphia		Type	A1 Repair LTC	
PD #		N0038324Y4902		RVPR#	1104896163	
Item Manager	Szymczak, Christopher	Work Function	Planner	Phone		Code N98212.81
Technician	Smith, Raymond	Work Function	Equipment Specialist	Phone		Code N98214.13
Buyer	Noel, Sophia	Work Function	Contract Specialist	Phone		Code n763.08

2. Description of the Action Being Approved

Description	Negotiation and award of a contract through other than full and open competition.
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The period of performance for the proposed action will be	
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3. Description of Supplies/Services

☐ Spares

☒ Repair/Overhaul

☐ Modification

☐ Management

☐ Piece Parts

☐ Data Report

Nomenclature	FUEL CONTROL, MAIN	Quantity	
NSN	Various	Cage Code	
P/N	Various	Unit Price	
Estimated Value			

Ship To

Period of Performance: Expected Final Delivery Date	02/28/2030
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Line of Accounting

97 00 XX XX 4930 NC1A 000 85004 0 050120 7T 000000 7RPS00000000

4. Statutory Authority Permitting Other Than Full & Open Competition

This J&A is based upon the authority of 10 USC 3204(A) (1), only one or a limited number of responsible sources will satisfy agency requirements, as implemented by FAR 6.302-1

5. Rationale Justifying Use of Cited Authority

A/RMC 3

Acquire, for the second or subsequent time, directly from the actual manufacturer.

A/RMSC C

This part requires engineering source approval by the design control activity in order to maintain the quality of the part. Existing unique design capability, engineering skills, and manufacturing/repair knowledge by the qualified source(s) require acquisition/repair of the part from the approved source(s). The approved source(s) retain data rights, manufacturing/repair knowledge, or technical data that are not economically available to the Government, and the data or knowledge is essential to maintaining the quality of the part. An alternate source must qualify in accordance with the design control activity's procedures, as approved by the cognizant Government engineering activity. The qualification procedures must be approved by the Government engineering activity having jurisdiction over the part in the intended application. If one source is approved, A/RMCs 3, 4, or 5 are valid. If at least two sources are approved or if data is adequate for an alternate source to qualify in accordance with the design control activity's procedures, A/RMCs 1 or 2 are valid.

This acquisition will be solicited to

Woodward (66503) Per JDRS, this item has been deemed a Critical Safety Item (CSI), thus limiting qualified sources. The acquisition/repair of the item listed above will be solicited to Woodward (66503) because they are the only approved source of supply/repair. All alternate sources must qualify IAW the DCA's procedures, as approved by NAVAIR prior to contract award. The Navy does not currently have in its possession any manufacturing/repair data, supporting test equipment, and associated specifications required to procure/ contract repair for the items. Since the Navy does not own sufficient information such as any drawings, specifications, test equipment/procedures, a full and open competitive solicitation cannot be supported. NAVSUP-WSS must procure the item repair of the item from Woodward (66503)

6. Description of Efforts Made To Solicit Offers From as Many Offerors as Practicable

15 MAR 2019 Class Waiver of the Requirement to Post a Request for Information or Sources Sought Notice applies to this requirement

The proposed contract action was synopsized on the government-wide point of entry on

11/28/2023

and as a result

Market research was conducted in accordance with far part 10. The results of the market research conducted (or the reason(s) market research was not conducted) are as follows

: The latest configuration has been checked and all records (ITIMP, JDRS/ASE, etc.) have been properly aligned, identified, and documented. This item has been deemed a Critical Safety Item, thus limiting qualified sources. Per JDRS, Woodward (66503) is the only approved source at this time. The data necessary to solicit this item from sources other than Woodward (66503) is not physically available and is uneconomical to obtain. The available technical data is insufficient for the development of new sources. Source Development Department files indicate no Source Approval Request (SAR) has been received from any party interested in becoming an approved source.

7. Determination of Fair And Reasonable Cost

The contracting officer determines that the anticipated cost to the Government of the supplies covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition

To promote competition, NAVSUP WSS will continue to encourage vendors with the expertise to manufacture/repair the subject item to submit a complete technical data package for review and source approval by the appropriate engineering source approval authority per the (WSS) guidelines. Also, future requirements will be advertised on the government-wide point of entry. For reasons set forth in Paragraph (5 & 6), NAVSUP WSS has no plans at this time to compete future contracts for the subject item covered by this document. If another potential manufacturing source emerges, NAVSUP WSS will assess whether competition for future requirements is feasible. Also, future requirements will be advertised on the government-wide point of entry.

Previous J&A

Previous J&A Available in Workflow Pro

9. Any Other Facts Supporting Other Than Full & Open Competition

A recent engineering change by the Spares OEM recommends upgrade of NIIN 013322469 to NIIN 014923907. NIIN 014923907 shall be the output NIIN on contract for inputs 013322469 and 014923907.

History

Created By	Christopher Szymczak	Work Function	Planner	Created Date	10/25/2023 25-OCT-23
	[REDACTED]				

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Requirements Cognizance Signature	Christopher Szymczak	Work Function	Planner	Requirements Cognizance Signature Date	11/14/2023
	[REDACTED]				

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Technical Cognizance Signature	Raymond Smith	Work Function	Equipment Specialist	Technical Cognizance Signature Date	11/15/2023
	[REDACTED]				

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Source Validation Cognizance Signature	Johnny Brown	Work Function	Equipment Specialist	Source Validation Cognizance Signature Date	11/20/2023
	[REDACTED]				

I certify that this J&A is accurate and complete to the best of my knowledge and belief

Contracting Officer Certification Signature	Michael Grant	Work Function	Contract Specialist		
	[REDACTED]				
		Contracting Officer Certification Signature Date		11/28/2023	

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Competition Advocacy Review And Concurrence Signature	John Sweeney	Work Function	Competition Advocate	Competition Advocacy Review And Concurrence Signature Date	12/18/2023
	[REDACTED]				

I certify that this J&A is legally sufficient to the best of my knowledge and belief

**Legal Sufficiency
Review Signature**

Jasmine Knight

Work Function

Attorney

**Legal Sufficiency
Review Signature
Date**

01/25/2024

I certify that this J&A is accurate and complete to the best of my knowledge and belief

**Approval Required
By Far 6.304
Signature**

Lynn Kohl

Work Function

Head of Contracting
Activity

**Approval Required
By Far 6.304
Signature Date**

02/08/2024